

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, AUGUST 7, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**JPMORGAN CHASE BANK, N.A. v. MAURICE C. CATO
Case No. CL25-04809**

Motion for Entry of Judgment Under Terms of Stipulated Settlement

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action (such as Defendant here) typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) The court is not satisfied that the mailing address Plaintiff used for service of notice of motion is a good way to reach Defendant. At the previous June 26, 2026 hearing on this motion the court continued the motion to its current date to afford Plaintiff an opportunity to properly serve notice on Defendant; however, the court file does not contain any new proof of service documents.

The court denies this motion without prejudice due to the above-stated issues. Plaintiff is advised to effect service of future motion papers on Defendant in a manner authorized for service of summons and complaint, at least sixteen court days prior to the continued hearing date.

FITZGERALD v. GENERAL MOTORS, LLC
Case No. cu25-02687

Motion by Defendant GENERAL MOTORS, LLC for Judgment on the Pleadings

TENTATIVE RULING

For statutory lemon law claims in which restitution or replacement is sought on a vehicle which was issued an express warranty, and when the vehicle manufacturer opted in to its coverage, a six year from date of purchase limitations period applies to cases filed after December 31, 2024. C.C.P. §§871.20 and 871.21.

Plaintiff purchased the subject vehicle on February 23, 2019, and did not file his initial complaint until March 21, 2025, which is more than six years later.

However, the court finds that the six-year limitations period does not bar this action, for a couple of independent reasons.

First, GM did not opt in to the application of this limitations period until April 23, 2025, over a month after Plaintiff had filed the initial complaint.

It does not seem fair to the court to allow a manufacturer's actions subsequent to the filing of a complaint to determine whether the complaint was or was not timely filed.

Alternatively, the court finds that Emergency Rule 9 extended by approximately six months the deadline for filing a complaint, as that rule states:

Notwithstanding any other law, the statutes of limitations and repose for civil causes of action that exceed 180 days are tolled from April 6, 2020, until October 1, 2020.

While GM argued that it was a Judicial Council rule that was subordinate to statutes enacted by the Legislature, the case GM relied upon is easily distinguished. Ables v. A. Ghazale Brothers, Inc. (2022) 74 Cal.App.5th 823, 827.

Ables involved Emergency Rule 10, which extended by six months the five years to trial deadline. The plaintiff had failed to make it to trial within five and a half years, and argued that the Emergency rule also constituted a statute that under C.C.P. §583.310 tolled the running of the statute of limitations an additional six months. It was in that context that the Ables court found Emergency Rule 10 was not a statute, and so did not both extend by six months and toll for an additional six months that five year rule.

As a later case explained:

Government Code section 68115, subdivision (a) provides the Judicial Council with special authority during an event that poses a substantial risk to the health

and welfare of court personnel and the public or a condition that results in the United States President or the Governor declaring a state of emergency. This includes the express authority to extend the time under section 583.310 to bring an action to trial. (Gov. Code, § 68115, subd. (a)(6).) As discussed above, emergency rule 10(a) was one of 11 rules enacted as a direct result of Governor Newsom's declaration of a state of emergency during the COVID-19 pandemic. Therefore, the Judicial Council had full authority under Government Code section 68115 to pass emergency rule 10(a) and extend the time in which matters could be brought to trial under section 583.310. Accordingly, at the time of the hearing on Santa Clara VTA's motion to dismiss, Barron still had until July 31, 2022, or five years six months from the time of filing her complaint, to bring her matter to trial.

In the trial court and on appeal, Santa Clara VTA argues that the Ables holding effectively invalidated emergency rule 10(a) by finding that Judicial Council rules were not statutes and therefore could not amend existing statutory deadlines. We find Ables legally and factually inapposite.

In Ables, the plaintiff filed a complaint for negligence in July 2015. (Ables, supra, 74 Cal.App.5th at p. 826.) After conducting discovery for a number of years, the plaintiff filed a request in November 2019 for the trial date to be continued. (Ibid.) The court subsequently continued the trial date to March 2021, which was over five years seven months from when the plaintiff first filed her complaint. (Ibid.) After the defendants filed motions to dismiss for failure to prosecute within five years, the plaintiff argued that emergency rule 10(a) entitled her to an additional six months under section 583.350 in which to bring the matter to trial, thus giving her a total time of six years to bring the case to trial after filing. (Ables, at p. 826.) The trial court rejected this argument, stating that while emergency rule 10(a) extended the time in which the action could be brought to trial by six months under section 583.310, it did not constitute a statute entitling the plaintiff to an additional six-month extension under section 583.350. (Ables, at p. 828, italics added.) As the plaintiff's case was not brought to trial within the five-year six-month period, the court granted the motions to dismiss. (Id. at p. 826.)

In affirming the trial court's decision, the appellate court agreed that emergency rule 10(a) was not a statute and therefore did not trigger the extra six-month period provided under section 583.350. (Ables, supra, 74 Cal.App.5th at p. 828.) However, at no time did the court state that emergency rule 10(a) was invalid, which Santa Clara VTA concedes. The court simply noted that the rule did not toll the five-year period in section 583.310 but instead extended the time in which to bring an action to trial. (Ables, at p. 828, fn. 5.) In fact, the court acknowledged the validity of emergency rule 10(a) in the opinion by noting twice that the plaintiff had until January 2021, or a total time of five years six months, to bring the matter to trial. (Ables, at p. 828; see also id. at p. 828, fn. 5; see also State ex rel. Sills v. Gharib-Danesh (2023) 88 Cal.App.5th 824, 840 [304 Cal. Rptr. 3d 865] [citing Ables for the proposition that emergency rule 10(a) extended the five-year

rule to five years six months for any cases filed on or before Apr. 6, 2020].) Barron v. Santa Clara County Valley Transportation Authority (2023) 97 Cal.App.5th 1115, 1124-1125.

Thus, the court denies GM's motion to strike the first three causes of action.

The court also denies GM's motion as to the 4th cause of action, for breach of implied warranty.

In general, an implied warranty of habitability is "coextensive in duration with an express warranty which accompanies the consumer goods". Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1304.

GM argued that a four year limitations period applies, running from the date of delivery.

Commercial Code §2725 sets a four year limitations period for breach of warranty, running from the date of delivery of the goods unless the parties expressly extended it to future performance.

The key case cited by GM involved a warranty that a spring probe connector would have a "mechanical life" of 50,000 cycles. Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116. It was because the warranty did not set a specific time deadline that the court found the four years ran from date of delivery. Id. at 130 ["the 'future performance' exception applies only when the future warranty refers to a specific future time period"].

The Cardinal Health court then distinguished this from a situation where the manufactured item was a vehicle, and the express warranty stated a specific number of years that it applied.

[The case of Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205] provides an example of a warranty that explicitly extends to future performance because it contains an express time limit. The automobile warranty stated the defendant would repair defects for 36 months or the first 36,000 miles, whichever occurs first—thus creating a defined three-year outer limit for the warranty period (*Krieger, supra*, 234 Cal.App.3d at p. 216.) Moreover, the *Krieger* court focused on the promise to *repair* the vehicle during the warranty period. The court stated: "A promise to repair defects that occur during a future period is the very definition of express warranty of future performance" (*Id.* at p. 217.) Here, the warranty did not include a similar promise to repair. Id. at 133.

In the present case, GM provided a 3 year, 36,000 mile express warranty, in effect warranting future performance until February 23, 2022 (three years after date of purchase). Plaintiff filed his initial complaint on March 21, 2025, a little more than three years thereafter, and thus within the four-year breach of implied warranty cause of action.

The court grants GM's motion for judgment on the pleadings on the 5th cause of action for fraudulent inducement—concealment.

C.C.P. §338(d) sets a three-year from discovery limitations period to bring a cause of action for fraud.

Plaintiff's first amended complaint alleges that "Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to engine defects, transmission defects, electrical defects, among other defects and non-conformities" [¶11].

As earlier noted, GM's express warranty was for 3 years or 36,000 miles. Thus, for the purchase date of February 23, 2019, that period ended as of February 23, 2022.

Plaintiff's initial complaint was filed on March 21, 2025, more than three years later.

Unlike for the longer six-year limitations period, no part of the three-year limitations period from this admitted discovery involved the almost six month time period back in 2020, which Emergency Rule 9 covers (or if the claim was discovered within a year or two after purchase, the three-year limitations period including COVID tolling would have expired long before Plaintiff filed his initial complaint).

GM is therefore entitled to judgment on the pleadings on the 5th cause of action for fraudulent inducement—concealment, without leave to amend.

With GM having earlier filed an answer to the 1st amended complaint, the pleadings are now set.

MARQUIEL YOUNG v. SHAILA HOLDINGS LLC et al.
Case No. CU25-07357

SHAILA and JUNAID's Motion to Strike Punitive Damages

TENTATIVE RULING

Defendants SHAILA HOLDINGS LLC and NADER JUNAID ("Moving Defendants") move to strike the allegations and prayer within Plaintiff MARQUIEL YOUNG's first amended complaint ("1AC") concerning punitive damages. Summarized, Plaintiff alleges that she rented a residence from Defendants (including Defendant VIRGINIA HILLS LLC) that was not habitable due to cockroaches, mold, a dirty air system, cracking paint, and more. Plaintiff alleges that Defendants retaliated against her in violation of Civil Code section 1942.5 by moving to evict her because she complained about the uninhabitable premises.

Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading. A motion to strike must be filed within the time provided to respond to a pleading. (Code Civ. Proc., § 435, subd. (b)(1).) A court has discretion to grant any motion to strike made outside that time frame, though. (Code Civ. Proc., § 436.) Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is “proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” This means that a plaintiff’s pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “Malice” means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; “oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights; and “fraud” means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code, § 3294, subd. (c).) “Despicable” conduct refers to that which is “base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Plaintiff alleges at page 4, lines 4 to 16, of the 1AC that Defendants’ agent harassed and intimidated her by filming her at her apartment despite being asked to leave and attempting to enter her children’s bedroom without permission. She also alleges that Defendants’ agent taunted her when she said she would call the police, saying “no one was going to help.” Most significantly, Plaintiff alleges that Defendants retaliated against her for complaining about habitability by evicting her. The first amended complaint contains valid factual allegations demonstrating malicious and/or oppressive conduct potentially supporting imposition of punitive damages.

Moving Defendants’ motion to strike the punitive damages allegations and prayer is denied.

BEASLEY, et al. v. SELENE FINANCE LP, et al.
Case No. CU26-03170

Motion by Attorney John R. Setlich to Be Relieved as Attorney of Record

TENTATIVE RULING

The motion is granted, with withdrawal effective only upon prompt service on the client of the signed order and no sooner than as indicated herein. Counsel shall continue to represent the Plaintiff Ronnie Baker through and including the Demurrer hearing which is currently scheduled for September 18, 2026.

DAILEY v. SOLANO COUNTY SHERIFF, ET AL.
Case No. FCS058487

Motion for Leave to File “First” Amended Complaint

TENTATIVE RULING

Plaintiff’s motion for leave to file the proposed amended complaint is granted. The second amended complaint that was wrongfully filed on July 7, 2026 shall be deemed to be filed on the date of filing of the formal order granting this motion.

Courts should apply a policy of great liberality in permitting amendment to a pleading at any stage of the proceedings as long as no prejudice has been shown to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487.) The party claiming to be prejudiced has the burden of demonstrating that prejudice. (See, *Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159 [court did not abuse its discretion because the defendants did not make an adequate showing of prejudice].) As long as proposed amendments relate to the same general set of facts, the introduction of new legal theories should not bar amendment. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Although Plaintiff improperly served a new and different version of the second amended complaint than the proposed amended pleading that had originally been lodged with Plaintiff’s motion, this latest version of the second amended complaint is still based on the same basic facts as the original complaint. All four of the “causes of action” now attempted to be alleged are merely different legal theories for recovery for the same injuries Plaintiff sustained while being transported by Defendant Duffield.

Defendants have made no showing that they would be substantially prejudiced by the grant of leave to amend. To the extent Defendants argue that Plaintiff’s assault and battery claims have been defectively pleaded, Defendants are free to challenge the sufficiency of the amended pleading by demurrer, motion for judgment on the pleadings, or other appropriate proceeding.

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